

USE OF OTHER THAN FULL AND OPEN COMPETITION SAT



2. Nature and/or Description of the Action Being Approved

Item	Description	Qty
1	A21402C99ENNAWH-S Factory Program AMS 2140 2-Channel Unit. Route/Analyze/Cascade. EN. Non-rated. Wireless & Hard Case	1
2	A2140S7 AMS 2140 BALANCE DLP FW -THE DOWNLOADABLE BALANCE PROGRAM FOR THE AMS 2140 ALLOWS YOU TO PERFORM FIELD OR SHOP BALANCING.	1
3	GUARDIAN-AND-FMR-PORTABLE 1 Year Product Support and Repair Portables	1
4	Estimated Shipping	1
5	GUARDIAN-AND-FMR-PORTABLE 3 Year Guardian Support and Repair Portables for AMS 2140, SN B21401194644	1

3. Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value

EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM).

Is the requested material or service represents the minimum requirements of the Government Estimated Dollar?

Estimated Dollar Value:

FY/Option/Ordering Period	OM&N	OPN	RDT&E
0.00	0.00	0.00	
Subtotals 0.00	0.00	0.00	
		Total 0.00	

4. Statutory Authority Permitting Other Than Full and Open Competition

Additional Information Regarding Statutory Authority if Applicable

N/A

Procurement Request/Solicitation/Purchase Order Number: 20250005211

Control Number:

I. Background

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, the estimated cost/price, and the required date/period of performance

Please reference item 3 above (Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value)

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING:

A. ONLY ONE RESPONSIBLE SOURCE

Yes

1. Restrictive Rights

No

The source has established proprietary rights, limited rights in data, patent rights, copyright processes in the item or service required.

2. Exclusive Licensing Agreements

Yes

The item or service is only available from the Original Equipment Manufacturer (OEM), or its authorized distributor or technical representative for the OEM.

Identify the OEM and explain the circumstances surrounding why the item or service is only available from the OEM.

OR

Identify the distributor(s)/authorized technical representative(s) for the item or service. Provide evidence of the exclusive licensing agreement as an attachment to this docu there is more than one distributor/authorized technical representative for an OEM part, then Part B, BRAND NAME SOLE SOURCE, is applicable, and Part A, ONLY ONE RES SOURCE, should be left blank

Emerson Automation Solutions (Emerson) and its sole source reseller, Control Southern LLC, is the world's largest predictive maintenance service provider. There is no othe source to provide the complete integrated Predictive Maintenance equipment, proprietary software, services, training and consulting. They are the only known company tc Predictive Maintenance technologies in a commercial off-the-shelf and advertised ready-to-sell approach.

The Government to date has made investments with Emerson via the Predictive Maintenance Program. If the Government chooses to partner with another company, all pr will be lost and will have to be replaced.

Control Southern provided written documentation, dated 25 March 2025, that they are the Impact Partner for Emerson Automation Solutions covering the Southeast regio States for eastern Tennessee, northern Alabama, and all of Georgia and Florida.

3. Other Reasons

No

Provide details on mission impact if requirement is not solicited from only one source

B. BRAND NAME

No

Item required must be a brand name product, or feature of a product, particular to one manufacturer. Discuss why you are precluding consideration of a product ma another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purc cannot be used (see FAR 11.104). Describe how market research indicates other companies' similar products or products lacking the particular feature do not meet, o modified to meet, the agency's needs

N/A

C. UNUSUAL AND COMPELLING URGENCY

No

The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the num from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine proces: result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the follo

Discuss why you are precluding consideration of a product manufactured by another company. Describe how the particular brand name, product, or feature is essent Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.1014). Describe how market research indicates other similar products and products lacking the particular feature do not meet, or cannot be modified to meet, the agency's need.

N/A

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
- 04/11/2025 to 04/10/2026
3. Explanation of why delivery/commencement of services by the date mentioned above is required: Explain the impact to the mission if the date above is not met, ar circumstances or conditions that exist which validate the requirement as "urgent," estimated production lead time for the item, etc.
4. If appropriate, include any additional pertinent information:
- N/A

CERTIFICATIONS/APPROVALS:

TECHNICAL CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents noted herein, are complete and accurate to the best of my knowledge and belief.

Technical Cognizance

I certify that the facts and representations under my cognizance which are included in this Exception to Fair Opportunity and its supporting acquisition planning documents noted herein, are complete and accurate to the best of my knowledge and belief.

Requirements Cognizance

CONTRACTING OFFICER CERTIFICATION

I certify that this Exception to Fair Opportunity is accurate and complete to the best of my knowledge and belief. The Contracting Officer\\\'s signature below represents apj document.

Contracting Officer's Signature



LEVEL ABOVE CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief. The Level Above the Contracting Officers signature below represents approval document.

Level Above the Contracting Officer

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

Legal Sufficiency Review

CONTRACTING ACTIVITY COMPETITION ADVOCATE REVIEW

Contracting Activity Approval

HEAD OF CONTRACTING ACTIVITY APPROVAL

Upon the basis of the above justification, I hereby approve, as Head of Contracting Activity, the solicitation of the proposed procurement described herein using other than competition, pursuant to the authority of (Placeholder for US code citation)

HCA Approval